BAY CITY COMMERCIAL VENTURES CORP.

Ayala Malls MANILA BAY

BACK TO BAY CITY COMM'L VENTURES CORP.

CONTRACT OF LEASE RENEWAL

Mr. Adrian P. Dimacali
Cafe Mary Grace Kiosk
Mary Grace Foods Inc.
Ground Floor, Ayala Malls Bay
Parañaque City

Dear **Mr. Dimacali:**

This refers to your lease at Ground Floor for the operation of your "**CAFE MARY GRACE KIOSK**" outlet, which will expire on **30 September 2024**.

We shall be glad to renew your lease under the same terms and conditions stated in our Contract of Lease (as amended, if applicable), subject however to the following amendments and your compliance with the conditions set forth herein:

1. **TERM**: Your lease shall be renewed from **01 October 2024 to 30 September 2025** (the "Renewed Term").

2. **AREA**: **6.00** square meters.

3. **RENT & OTHER CHARGES**: Your monthly rent per square meter for the Renewed Term shall be equivalent as follows:

Period	Fixed Rent
01 October 2024 to 30 September 2025	P5,250.00

***plus the applicable VAT**

4. **ADDITIONAL SECURITY**: For the renewed term, you shall deliver to us the Additional Security as required under the Contract of Lease. You shall therefore pay us on the date specified in the Statement of Account the excess of the new security deposit over the amount of the Additional Security already remitted to us.

New Security Deposit	**P**	**189,000.00**
Less: Existing Security Deposit	**P**	**180,000.00**
Additional Security Deposit	**P**	**9,000.00**

5. **ZING LOYALTY PROGRAM AND SCAN TO PAY FACILITY**: (a) As part of the consideration for the grant of the lease, the LESSEE shall enroll as member and participate in Ayala Malls' Zing Loyalty Program and submit such form and information necessary for the LESSOR to grant LESSEE's customers with Zing loyalty points for every eligible spend or purchase in the Leased Premises. The LESSEE shall accordingly adopt such scan-to-pay facilities accredited by the LESSOR as payment options in the Leased Premises. (b) The LESSOR shall issue and the LESSEE shall display in the Leased Premises such marketing materials (including, but not limited to, acrylic table standee, flyers, and/or "Zing" door/window sticker or hanger) which shall feature the Zing logo, among others, in order to convey to customers that the LESSEE is a participating merchanting in the Ayala Malls' Zing Loyalty Program. The LESSOR may vary the design and execution of such marketing materials from time to time. The LESSEE may also request for or use customized marketing materials, subject to mutual agreement of the LESSOR and the LESSEE. (c) As a participating merchant in the Ayala Malls' Zing Loyalty Program, the LESSEE may be requested to promote the use of Ayala Malls' Zing to its customers for the latter to earn loyalty points for every eligible spend or purchase. The LESSEE, at its option, may also enter into specific co-marketing promotions with the Ayala Malls' Zing Loyalty Program.

6. **OTHER CONDITION**: As part of the consideration for the grant of this lease, the LESSEE agrees that all its sodas, water, beverages, ice and other related requirements shall be purchased from the LESSOR and/or its accredited supplier.

7. **NOTICE**: Where demand or notice is required to be given under this Contract, notice sent to the LESSEE (a) at the Leased Premises or at the address specified above either by registered mail, private courier or by personal delivery; (b) by e-mail at the address specified in the Merchant Information Sheet; or (c) via the Ayala Mall's Merchant Portal shall be considered sufficient compliance with the requirement of notice or demand. The LESSEE undertakes to inform the LESSOR regarding change of address or email address.

FRANCE S. EUSEBIO
Attorney-in-Fact
Bay City Commercial Ventures Corp.

MA. ANA TERESA Y. LOPEZ
Attorney-in-Fact
Bay City Commercial Ventures Corp.

CONFORME:
Mary Grace Foods Inc.
By:

Date: 6.11.24

Mr. Adrian P. Dimacali

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Except as provided above, all other terms and conditions of our Contract of Lease shall remain the same. Terms used herein shall have the same meaning as that provided in our Contract of Lease.

Kindly indicate your conformity below and return to us the original and one (1) copy of this letter **not later than 10 OCT 2024**. Should we not receive a reply from you with regard to this matter on or before the said date, we will deemed it to mean that you have ACCEPTED and AGREED to all the terms and conditions herein stated. This letter, when signed or deemed accepted by you shall constitute an amendment and addendum to our Contract of Lease and shall form an integral part thereof.

As our valued partner, we take utmost priority in keeping your account updated and ensuring that our correspondences reach you as intended. In this regard, kindly fill up the attached Merchant Information Sheet and return to us together with this renewal letter.

Sincerely,

FRANCE S. EUSEBIO
Attorney-in-Fact
Bay City Commercial Ventures Corp.

MA. ANA TERESA Y. LOPEZ
Attorney-in-Fact
Bay City Commercial Ventures Corp.

CONFORME:
Mary Grace Foods Inc.
By:

Mr. Adrian P. Dimacali

Date: 6.11.24

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